

it was asked that the court order the War Assets Administrator, his agents, assistants, deputies and employees and all persons acting under their direction, not to sell the coal involved and not to deliver it to anyone other than the respondent.⁹ The district court held that this was relief against the sovereign and therefore dismissed the suit. We agree.

There may be, of course, suits for specific relief against officers of the sovereign which are not suits against the sovereign. If the officer purports to act as an individual and not as an official, a suit directed against that action is not a suit against the sovereign. If the War Assets Administrator had completed a sale of his personal home, he presumably could be enjoined from later conveying it to a third person. On a similar theory, where the officer's powers are limited by statute, his actions beyond those limitations are considered individual and not sovereign actions. The officer is not doing the business which the sovereign has empowered him to do or he is doing it in a way which the sovereign has forbidden. His actions are *ultra vires* his authority and therefore may be made the object of specific relief. It is important to note

complaint did not ask for damages but for specific relief, the Administrator, in his official capacity, was, of course, a proper party. Cf. *Williams v. Fanning*, 332 U. S. 490 (1947).

⁹ The complaint also asked for declaratory relief even more clearly directed at the sovereign. It was asked that the court declare that "the sale of this coal . . . is still valid and in effect." The Administrator, an agent for a disclosed principal, was not a party to the contract of sale. See 2 Restatement, Agency (1933) § 320. The request for an adjudication of the validity of the sale was thus, even in form, a request for an adjudication against the sovereign. Such a declaration of the rights of the respondent *vis-à-vis* the United States would clearly have been beyond the court's jurisdiction. See *Stanley v. Schwalby*, 162 U. S. 255 (1896). We do not rest our conclusion here on the request for such a declaration, since the district court could have granted only the injunctive relief requested.